

CV-22-001828 LONGORIA, OSCAR vs CITY OF MODESTO – Plaintiff's Motion to Compel Compliance with Court Order and for Issue and Terminating Sanctions, and Request for Monetary Sanctions in the Amount of \$1,860.00 –

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: GRANTED, in part; DENIED, in part. The Court finds that Defendant's conduct in failing to timely comply with the Court's 2-26-26 order constitutes misuse of the discovery process (Code Civ. Proc. § 2023.010(d), (g).) However, under the circumstances the Court notes the defense's attempt to provide compliant further verified responses in advance of the instant hearing and declines to award issue, evidence, or terminating sanctions at this time. As Plaintiffs' reply brief demonstrates, Defendant's further verified responses appear incomplete, as the two subject requests and responses are identical as reflected therein and reference the same attached set of documents. Therefore, Defendant is again ordered to provide complete verified further responses, without objection, and to produce all responsive documents within 10 days. (Code Civ. Proc. § 2031.320(c).) The Court further finds that Defendant's conduct is attributable to its counsel and necessitated the instant motion, entitling Plaintiffs to an award of monetary sanctions herein. (Code Civ. Proc. §§ 2031.320(c), 2023.010, 2023.030.) Therefore, \$1,560 in additional monetary sanctions is awarded against defense counsel, payable to Plaintiff's counsel. Plaintiffs shall submit a revised form of order reflecting the Court's ruling herein.

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